

|            |                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|------------|---------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|            |                                                                           | <p>(Defendant's Opp). The Separate Statement, filed concurrently with the motion, establishes that for many RFAs Defendant responded "unknown". Defendant also denied several RFAs. (See Separate Statement, ROA 56) On December 17, 2025, Plaintiff mailed a meet and confer letter as required by CCP § 2033.290(b)(1).</p> <p>In response to this Motion, Defendant Montgomery merely states that she served responses on December 16, 2025.</p> <p>Therefore, Motion is GRANTED as to RFAs 20, 22, 32, 40, 42, and 43 wherein Defendant evasively responded "unknown". To the extent this motion is directed to responses where Defendant equivocally denied or admitted an RFA, the motion is DENIED pursuant to the authority set forth above.</p> <p>Plaintiff's request for sanctions is DENIED as not having been properly noticed. ["A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought." Code Civ. Proc., § 2023.040.]</p> <p>Furthermore, in pro per parties cannot recover discovery sanctions. [See <i>Argaman v. Ratan</i> (1999) 73 Cal.App.4th 1173, 1179; <i>Kravitz v. Sup.Ct. (Milner)</i> (2001) 91 Cal.App.4th 1015, 1021.]</p> <p><i>Plaintiff to give notice.</i></p> |
| <b>105</b> | Godoy vs. Godoy,<br>24-01413474                                           | <i>Off-Calendar.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>106</b> | McKesson Medical Surgical, Inc. vs. Gordian Medical, Inc.,<br>25-01500196 | <p>Specially Appearing Defendant Gordian Medical, Inc. ("Defendant") moves to quash service of summons and dismiss the action against it for lack of personal jurisdiction.</p> <p>"Due process permits the exercise of personal jurisdiction over a nonresident defendant in the following four situations: (1) where the defendant is domiciled in the forum state when the lawsuit is commenced; (2) where the defendant is personally served with process while he or she is physically present</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |